

SALES CONTRACT

PARTIES

- This Sales Contract (hereinafter referred to as the “**Contract**”) is entered into on 1st November 2024 (the “**Effective Date**”), by and between eBRAM International Online Dispute Resolution Centre, having a principal place of business at Room 403, 4/F, West Wing, Justice Place, 11 Ice House Street, Central, Hong Kong, (hereinafter referred to as the “**Customer**”) and Coffee Company Limited, having a principal place of business at 88/F, Kaleidoscope Building, Taikoo, Hong Kong, (hereinafter referred to as the “**Seller**”) (collectively referred to as the “**Parties**”, and each a “**Party**”).

GOODS AND PRICE

- The goods that the Seller is selling to the Customer (hereinafter referred to as the “**Goods**”) and their respective quantities and prices are enlisted in the table below: -

Good	Quantity	Price per unit (HKD)	Total Price (HKD)
Coffee bean	10	\$200	\$2,000
Coffee Machine	2	\$2,800	\$5,600
White Sugar	3	\$10	\$30
Brown Sugar	3	\$10	\$30
Water	10	\$50	\$500

PRICE AND PAYMENTS

- The Seller hereby agrees to sell, and the Customer hereby agrees to buy, the Goods for a total amount of HKD 8,160.
- The Seller will provide an invoice to the Customer at the time of the Delivery.
- All invoices are to be paid in full within thirty (30) days.
- Any balances not paid within thirty (30) days will be subject to a five percent (5%) late payment surcharge.

DELIVERY AND SHIPPING

- The delivery of the Goods (hereinafter referred to as the “**Delivery**”) will be at the location of Room 403, 4/F, West Wing, Justice Place, 11 Ice House Street, Central, Hong Kong.
- The shipping method will be decided by the Seller and Seller will be responsible for the costs of the shipment.

WARRANTIES

- Except as expressly set forth in this Contract, the Parties acknowledge and agree that the Goods are provided on an “as is” basis.
- Except for the express warranties set forth in this Contract (if any), neither Party makes any representations or grants any warranties, express or implied, either in fact or by operation of law, by statute or otherwise, and each Party specifically disclaims any other warranties, whether written or oral, or express or implied, including any warranty of quality, merchantability, or fitness for a particular use or purpose or any warranty as to the validity of any patents or the non-infringement of any intellectual property rights of third parties.

INSPECTION

- The Customer acknowledges that it has relied solely on the investigations, examinations, and inspections that the Customer has chosen to make and that the Seller has afforded the Customer the opportunity for full and complete investigations, examinations, and inspections.

RISK OF LOSS AND TITLE

- The risk of loss or damage of the goods shall be borne by the Seller until the Goods have been passed upon Delivery to the Customer or its designee.
- The title of the goods will remain with the Seller until the Goods have been passed upon Delivery to the Customer or its designee.

DELAY OR FAILURE TO PERFORM AND FORCE MAJEURE

- Under no circumstances will the Seller be held liable to the Customer for any delay, non-delivery, or any fault arising from this Contract that may be due to any labour dispute, shortage of transportation, delay or shortage of materials to produce the Goods, fires, accidents, Acts of God, or any other causes outside of the Seller’s control. If the Seller is unable to deliver the Goods in accordance with the terms of this Contract due to the above reasons, the Seller shall

notify the Customer immediately upon realizing it. Upon such notice, either Party may terminate this Contract.

TERMINATION

- This Contract may be terminated by either Party or both Parties at any time provided that the terminating Party provides a written notice of termination at least 7 days in advance.

LIMITATION OF LIABILITY

- Under no circumstances will the Seller be liable for any indirect, special, consequential, or punitive damages (including loss of profits) arising out of or relating to this Contract or the transactions it contemplates (whether for breach of contract, tort, negligence, or other forms of action).

GOVERNING LAW

- This Contract shall be governed, construed and enforced in accordance with the laws of Hong Kong.

AMENDMENTS

- The Parties agree that any amendments made to this Contract must be in writing and must be signed by both Parties.
- Any amendments made by the Parties in accordance with the manner stipulated in the subparagraph above will be effective on this Contract.

SEVERABILITY

- In the event that any provision of this Contract is found to be void or unenforceable by a court of competent jurisdiction, that provision shall be enforced to the maximum extent possible under the applicable law and the remaining provisions of this Contract shall remain in full force and effect.

ENTIRE AGREEMENT

- This Contract represents the entire agreement and understanding of the Parties hereto with respect to the subject matter hereof, and supersedes all prior agreements, understandings, inducements, and conditions, express or implied, oral or written, of any nature whatsoever with respect to the subject matter hereof. The express terms hereof control and supersede any course of performance and/or usage of the trade inconsistent with any of the terms hereof.

EXCLUSION OF THIRD PARTY RIGHTS

- No person other than a party to this Contract shall have the right under legislation in the Hong Kong Special Administrative Region (“**HKSAR**”) or elsewhere in other jurisdictions to enforce or enjoy the benefit of any of its terms.

INTERPRETATION

- The headings in this Contract are for purposes of reference only and shall not in any way limit or otherwise affect the meaning or interpretation of any of the terms hereof.

DISPUTE RESOLUTION

- Any dispute, controversy or claim arising hereunder (the “Dispute”) and within the scope of the APEC Collaborative Framework for Online Dispute Resolution of Cross-Border Business-to-Business Disputes, shall be settled in accordance with the APEC Rules of eBRAM in force when the Notice of the Claim is submitted to eBRAM (the “eBRAM APEC Rules”).
 - The number of Neutrals shall be one.
 - The place of arbitration shall be Hong Kong SAR.
 - The applicable law of this arbitration agreement and of the procedure for the proceedings by ODR under the eBRAM APEC Rules shall be the laws of the Hong Kong SAR.
 - The language used in the arbitration under the eBRAM Arbitration Rules shall be English.

SIGNATURE AND DATE

- The Parties hereby agree to the terms and conditions set forth in this Contract and such is demonstrated throughout their signatures below: -

CUSTOMER

Name: Chan Tai Man

eBRAM International Online Dispute
Resolution Centre

Signature: Chen

Date: 1st November 2024

SELLER

Name: Jenny Chan

Coffee Company Limited

Signature: Jenny

Date: 1st November 2024